

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVBkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WILLIAM D ROSS,

Petitioner

VS.

STEPHEN R CROW,

Respondent

) Case Number: FDI-20-794096

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: REQUEST FOR HEARING; REQUEST FOR ORDER RE: PROPERTY
CONTROL, SEE ATTACHMENT 7

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner William D. Ross and Respondent Stephen R. Crow.
- 2) On 1/8/26, the Court issued an order regarding the property located at 779 Waller Street, San Francisco (Waller Street property). This order details the extensive rulings the Court made concerning this property dated back to a Statement of Decision filed 5/11/23, which orders the property be listed for sale by 7/15/23. Of note is this Court's appointment of an elisor to sign the listing agreement on behalf of Petitioner. See Findings and Order After Hearing (FOAH) filed 1/23/26.
- 3) On 3/6/26, Petitioner filed a Request for Order seeking the Court's permission to "pursue assumption of the existing mortgage loan" on the Waller Street property. Petitioner states, "Petitioner is seeking to assume the existing loan and buy out Respondent's interest in the property. Petitioner has communicated with the lender regarding this option and understands that the loan may be assumed subject to lender approval." Petitioner requests the Court permit

1 reasonable time for lender evaluation and completion of the assumption process before the forced
2 sale of the Waller Street property. The matter was set for hearing on 5/12/26.

- 3 4) On 3/10/26, Petitioner submitted an ex parte application seeking temporary emergency orders as
4 follows: (a) the status quo regarding the Waller Street property be maintained; (b) activation of
5 any listing, marketing, showing, or sale of the property temporarily stayed; (c) any requirement
6 that Petitioner vacate the property temporarily stayed; (d) these temporary orders remain in effect
7 until the 5/12/26 hearing (on Petitioner's Request for Order filed 3/6/26). On 3/10/26, the Court
8 denied Petitioner's request for temporary emergency orders pending hearing set for 4/14/26.
- 9 5) On 4/10/26, Respondent filed a Request for Order seeking: (a) exclusive use and possession of
10 the Waller Street property; (b) an order requiring Petitioner to pay all utility costs incurred from
11 June 2022 until the date Respondent takes possession of the property; (c) an order for Petitioner
12 to continue to pay the carrying costs on the property; and (d) authorization to open a blocked
13 account with Redwood Credit Union for the purpose of depositing the net proceeds from the sale
14 of the property into this account. Respondent asserts that Petitioner's occupancy of the Waller
15 Street property has interfered with the sale process ordered by the Court as he has prohibited the
16 real estate agent from entering. Respondent states he does not intend to reside in the property, but
17 rather seeks exclusive use, possession, and control to ensure the realtor, repair persons, and
18 potential buyers will be able to access the property without delay. The matter was set for hearing
19 on 6/4/26.
- 20 6) At the prior 4/14/26 hearing, the Court denied Petitioner's requests set forth in his 3/10/26 ex
21 parte application and reserved jurisdiction over Respondent's request for \$1,612 in Family Code
22 section 271 sanctions. See FOAH filed 5/1/26.
- 23 7) On 4/17/26, Petitioner submitted an ex parte application seeking advancement of the 6/4/26
24 hearing to 5/12/26 based on judicial economy. Petitioner simultaneously filed a Request to
25 Reschedule Hearing.
- 26 8) On 4/20/26, the Court issued an Order on Request to Reschedule advancing the 6/4/26 hearing to
27 5/12/26 against Respondent's objection.
- 28
29

1 9) On 4/21/26, Petitioner filed a Supplemental Declaration asserting that the Court needs to order a
2 complete financial accounting before it can proceed with enforcement of the orders forcing the
3 sale of the Waller Street property as reimbursements and offsets need to be determined.

4 10) On 4/30/26, Respondent filed a Responsive Declaration in opposition to Petitioner's request to
5 assume a loan to buyout Respondent's interest in the Waller Street property. Respondent asserts
6 that Petitioner's intention is only to delay the sale and reiterates his request for an order for
7 exclusive use, possession, and control of the property to effectuate the sale; Respondent states, "I
8 intend to seek sanctions against Petitioner in the amount well over \$80,000 for fees incurred due
9 to his failure to follow this Court's order which caused me to incur fees to file repeated motions
10 to enforce the terms of the August 4, 2024 Judgment and subsequent orders."

11 11) On 5/5/26, Petitioner filed a Responsive Declaration asserting that he does not consent to
12 vacating the Waller Street property and there is no practical reason requiring that he vacate the
13 property because he is cooperating with the sale process. Petitioner opposes any order requiring
14 him to pay utility or carrying costs on the property and requests that Respondent be ordered to
15 pay such costs. It is Petitioner's position that the property is not ready for immediate sale.

16 12) On 5/5/26, Petitioner filed a Supplemental Declaration reiterating his request regarding a
17 "proposed loan assumption and buyout alternative" for the Waller Street property.

18 **B. Findings and Order**

19 1) Petitioner's request for an opportunity to pursue assumption of the existing mortgage loan on the
20 Waller Street property is DENIED. To date, Petitioner presented no documentary evidence
21 demonstrating his ability to assume the loan or buy out Respondent's interest in the property. In
22 the Court's view, it is clear that Petitioner intends to delay the sale of the Waller Street property
23 for as long as he possibly can.

24 2) Based on the foregoing, Respondent's request for exclusive use and possession of the Waller
25 Street property is GRANTED effective 6/12/26. The Court finds good cause to grant such a
26 request as Petitioner was previously ordered to vacate the residence and has refused to comply
27 with orders compelling the sale of the property since 2023. The Court does not see a path in
28 which Petitioner remains living in the Waller Street property and the sale of the property is
29

1 completed. Respondent may submit an ex parte application for a Writ of Execution to effectuate
2 this order if necessary.

3 3) The Court reserves jurisdiction over Respondent's request for an order requiring Petitioner to pay
4 all utility costs incurred from June 2022 until the date Respondent takes possession of the
5 property.

6 4) Respondent's request that Petitioner be ordered to continue paying the carrying costs on the
7 property is DENIED.

8 5) Effective 6/12/26, Respondent shall be temporarily responsible for utility payments and carrying
9 costs associated with the property subject to reallocation.

10 6) Respondent's request for authorization to open a blocked account with Redwood Credit Union for
11 the purpose of depositing the net proceed from the sale of the Waller Street property into this
12 account is GRANTED. The proceeds from the sale of the property shall remain blocked until
13 further order of the Court (i.e., neither party is permitted to access the funds unless and until a
14 Court orders otherwise).

15 7) Counsel for Respondent shall prepare the Findings and Order After Hearing.

16 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SUPAKIT KHIEWDEE,

Petitioner

VS.

YAN P. CAI,

Respondent

) Case Number: FDI-21-795408

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ATTORNEY FEES AND COSTS, ENFORCEMENT OF JUDGEMENT; CONTEMPT; OST RE:
PROHIBITING PETITIONER FROM RE-LEASING OAKLAND AND DALY CITY PROPERTIES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Supakit Khiewdee and Respondent Yan P. Cai.
- 2) On 7/8/25, Judgment of Dissolution was entered incorporating a martial settlement agreement with provisions for division of community property including:
 - a. 182 Accacia Street, Daly City, California. Prior to the division of the proceeds of the home after all debts are paid with respect to the existing mortgage, Husband shall receive reimbursement for his separate property contribution towards this real property in the form of the down payment in the amount of \$66,945 and Wife will receive her separate property contribution towards this real property in the form of the down payment in the amount of \$33,500. The remaining proceeds from the sale of this real property shall then be evenly divided between the parties. Each of the parties will be required Lo report their one-half share of the proceeds or sale and pay their respective share of the capital gains taxes owed, each using their individual deduction under IRC 121. Each of the parties

1 shall indemnify and hold the other harmless should they fail to pay their share of the
2 capital gains taxes on the funds received from the sale of Accacia Street.

- 3 b. 10205 Longfellow Drive, Oakland California shall be conferred Husband as his sole and
4 separate property without offset. Husband shall indemnify and hold the other harmless
5 should any issue arise with respect to this property regardless of the date the issue arose.
6 Husband shall remove Wife from the Title of the Oakland property and the Mortgage of
7 this Oakland property. Wife shall cooperate and sign any and all necessary documents
8 needed to effectuate this transfer. Husband shall refinance, assume, or extinguish the
9 mortgage within 180 days from entry of Judgment. Husband shall provide the submitted
10 application to Wife within 5 business days of submission. If Husband fails to refinance,
11 assume, or extinguish the mortgage in this time period, then the parties will sign with an
12 agent no later than November 1, 2025 and the parties will have the property listed for sale
13 no later than February 1, 2026. The current tenant shall vacate no later than December 31,
14 2025. If Husband has been unable to refinance, assume, or extinguish the mortgage in the
15 time period provided, then Husband shall not relet the property and shall immediately
16 inform the tenant that the lease shall not be renewed. Husband shall provide to Wife the
17 lease agreement no later than March 7, 2025.

- 18 3) On 12/18/25, Respondent filed a Request for Temporary Emergency (Ex Parte) Orders seeking:
19 (a) enforcement of judgment; (b) a finding of contempt for Petitioner's failure to comply with the
20 terms of the judgment; (c) \$5,000 in Family Section 271 attorney's fees sanctions; and (c) an
21 order shortening time on Respondent's requests to: (i) prohibit Petitioner from re-leasing
22 properties located at 182 Accacia Street, Daly City (Daly City property) and 10205 Longfellow
23 Drive, Oakland (Oakland property) and (ii) order Petitioner to engage realtors Lilian Cai and
24 Lynn Tanatanyan to execute listing agreements and prepare the properties for sale.
- 25 4) On 12/19/25, the Court granted Respondent's Temporary Emergency (Ex Parte) Order seeking an
26 order shortening time on and set the matter for hearing on 12/30/25. In the interim the Court
27 prohibited Petitioner from re-leasing the Daly City and Oakland properties absent further order of
28 the court or written agreement between the parties.
- 29 5) On 12/23/25, Respondent filed an Income and Expense Declaration.

- 1 6) At the prior 12/30/25 hearing, the Court continued the matter to 3/17/26 at Petitioner's request to
2 permit Petitioner time to retain legal counsel.
- 3 7) On 2/6/26, Respondent filed a supplemental declaration reiterating that Petitioner failed to
4 comply with the terms of the judgment and augmenting the request for attorney's fees sanctions
5 under Family Code section 271 to \$20,000.
- 6 8) On 2/6/26, Counsel for Respondent filed a declaration augmenting the request for attorney's fees
7 sanctions under Family Code section 271 to \$20,000 and asserting that Respondent incurred
8 \$29,864.45 in legal fees to date due to Petitioner's "repeated delays, lack of cooperation, and
9 refusal to meaningfully engage in settlement efforts."
- 10 9) On 3/9/26, Respondent filed an update declaration alleging that Respondent has emailed
11 Petitioner on eight different occasions seeking compliance with the judgment terms.
- 12 10) At the prior 3/17/26 hearing, the Court continued the matter to 5/12/26 to permit Petitioner time
13 to secure counsel.
- 14 11) On 5/1/26, Petitioner filed a Request to Reschedule Hearing, which Respondent opposed on
15 5/7/26. The Court denied the Request to Reschedule Hearing for no good cause shown.
- 16 12) On 5/6/26, Petitioner filed a Responsive Declaration seeking \$10,000 in sanctions against
17 Respondent under Family Code section 271 for "frivolously filing a RFO that contains false and
18 misleading statements," which can be deducted from her share of the net sale proceeds from the
19 Daly City property. Petitioner asserts that he did not re-lease or attempt to re-lease the two
20 properties, and he repeatedly told Respondent that he wanted to sell the Oakland property to
21 buyout her interest in Daly City property. Petitioner states he signed the listing agreement for the
22 Oakland Property on 11/26/25 and the listing agreement for the Daly City property on 3/6/26.
23 However, he tried to exercise his right of first refusal to purchase the Daly City property before
24 selling, but Respondent "unjustifiably refused without reason". Petitioner alleges that Respondent
25 and Respondent's counsel acted in bad faith by falsely misrepresenting that the Tentative Ruling
26 was adopted at the prior 3/17/26 hearing.

27 **B. Findings and Order**

- 28 1) Respondent's request for judgment enforcement is GRANTED.
- 29

- 2) While the Court understands this issue may be moot, the Court nonetheless reaffirms that Petitioner remains prohibited from re-leasing the properties located at 182 Accacia Street, Daly City (Daly City property) and 10205 Longfellow Drive, Oakland (Oakland property).
- 3) Petitioner's request for Right of First Refusal for the Daly City property DENIED as Respondent did not accept Petitioner's offer to buy out her interest in the Daly City property.
- 4) Petitioner shall forthwith cooperate with realtors Lilian Cai and Lynn Tanatanyanon to execute any outstanding listing agreements or actions necessary to prepare the Daly City property and Oakland property for sale. This order includes, but is not limited to, fully cooperating to sign any and all documents necessary to prepare both properties to be listed, to list the properties, and to sell the properties within 48 hours of receipt of the documents.
- 5) If either party fails to comply with signing any documents necessary to effectuate the orders set forth above, the party may file an Ex Parte Request for Order asking the Court to appoint the Clerk of the Court to serve as elisor to sign the documents on the other party's behalf. The filing party must attach to the Ex Parte Request for Order a copy of the document(s) to be signed.
- 6) The Court reserves jurisdiction over Petitioner's request for reimbursement for half of the expenses for the Daly City property.
- 7) Respondent's request for \$20,000 in Family Section 271 attorney's fees sanctions is DENIED as the Court finds both parties engaged in uncooperative conduct that frustrates the policy of law to promote settlement.
- 8) Respondent's request for a finding of contempt for Petitioner's failure to comply with the terms of the judgment is beyond the scope of relief available at this hearing and is therefore DENIED without prejudice.
- 9) Counsel for Respondent shall prepare the Findings and Order After Hearing.
- 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAZVAN ROMAN,

Petitioner

VS.

LLIANA NICULESCU,

Respondent

) Case Number: FDI-22-796234

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING

The 5/12/26 hearing on Petitioner's counsel, Mary F. Mock, Motion to be Relieved as Counsel filed 2/20/26 is VACATED as the motion was withdrawn. See Notice of Withdrawal of Motion to be Relieved as Counsel filed 4/28/26. **No appearances are required on 5/12/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON FRIEDENBERG,

Petitioner

VS.

JASON TROLLOPE,

Respondent

) Case Number: FDI-22-796972

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ENFORCEMENT AND CLARIFICATION OF MARRIAGE
SETTLEMENT AGREEMENT SECTION 6 FINANCIAL RESPONSIBILITY FOR SUMMIT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Allison Friedenberg (hereafter “Petitioner”) and Respondent Jason Trollope (hereafter “Respondent”).
- 2) On 3/23/23, the Court entered Dissolution Judgment attached to and incorporated in which is a Marital Settlement Agreement (MSA). Section 6 of the MSA includes provisions regarding the pet dog, Summit. See Dissolution Judgment file dated 3/24/23.
- 3) On 3/6/26, Respondent filed a Request for Order seeking Judgment enforcement and clarification as follows: (a) enforce Section 6 of the MSA; (b) confirm that Petitioner is financially responsible for Summit’s reasonable health and welfare expenses; (c) reject Petitioner’s assertion that Respondent owes retroactive reimbursement for expenses incurred for Summit; and (d) confirm that modification of Section 6 has not occurred. Respondent asserts that between November 2022 and January 2026, Petitioner reimbursed Respondent for pet food related expenses and acknowledged her financial responsibility and reimbursement practice in attached email

1 communications. Then, in February 2026, Petitioner demanded \$2,006 in retroactive
2 reimbursements for pet food related expenses.

- 3 4) On 4/27/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
4 Order. Petitioner requests the Court enforce the MSA "as written in that [Respondent] pay for all
5 expense listed on pg. 11 which designates what I am to pay and what [Respondent] has to pay."
6 Petitioner requests that the Court order Respondent to reimburse her \$2,006 for pet food related
7 expenses, which she believes was Respondent's financial responsibility. Petitioner asserts that
8 Respondent has not contributed to Summit financially in any form for the past four years;
9 however, the parties share 50/50 custody of the dog, which Petitioner believes is inequitable.
- 10 5) The Court notes there is no Proof of Service on file indicating Petitioner's 4/27/26 Responsive
11 Declaration was served on Respondent.
- 12 6) Respondent did not file a Reply Declaration.

13 **B. Findings and Order**

- 14 1) The Court read and considered the entirety of Section 6 of the MSA, which includes the
15 following pertinent language:
- 16 a. Page 10, subsection a states, "Each party will provide Summit with appropriate food,
17 water, and facilities."
- 18 b. Page 11, paragraph 2 states, "[Petitioner] shall be responsible for all reasonable expenses
19 for the health and welfare, and training of Summit, including fees associated with hiring a
20 dog walker, doggie daycare, or kennel, even during [Respondent]'s custodial time with
21 Summit. Each party shall be responsible for basic care and feeding of Summit while
22 he/she has custody of Summit."
- 23 c. Page 11, paragraph 3 states, "While [Petitioner] shall pay for Summit's expenses,
24 [Respondent] will contribute in-kind with the following responsibilities..." Page 11,
25 paragraph 3, subsection d states, "Food and Medication – [Respondent] will maintain
26 sufficient food, treat and medication supplies, including purchasing said provisions."
- 27 2) Based on the foregoing, and the facts and equities of this case, the Court finds that Respondent is
28 financially responsible for pet food related expenses while Summit is in his care. This includes
29 the purchase of food and treats.

- 3) Financial responsibility for medication is set forth in the last paragraph on page 10 and first paragraph on page 11 of the MSA, which states, “All reasonable medical expenses not covered [by pet insurance] shall be paid by [Petitioner]. However, if [Petitioner] does not believe medical treatment recommended by a veterinarian is warranted or reasonable, [Respondent] may pay for such treatment at his own expense.”
- 4) Based on the foregoing, and the facts and equities of this case, the Court finds that Petitioner is 100% responsible for the cost of medication unless she does not believe such medication is warranted or reasonable because medication qualifies as a medical expense.
- 5) The Court agrees with Petitioner that any other interpretation of the language set forth above would result in inequity given that the parties share custody of Summit 50/50; however, the Court rejects Petitioner’s contention that page 11, paragraph 3, subsections a-f is a list designating the financial responsibilities of Respondent and Petitioner. Rather, the Court finds that this list designates who is responsible for certain care, coordination, and communications.
- 6) Petitioner’s request for \$2,006 in retroactive reimbursements for pet food related expenses is DENIED.
- 7) The Court confirms that there is no modification of Section 6 of the MSA in the Court’s file.
- 8) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUSSELL OLEVSKY,

Petitioner

VS.

JONATAS DE PAULA OLIVEIRA,

Respondent

) Case Number: FDI-22-797024

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF MODIFY METHOD OF ENFORCEMENT OF ATTORNEY
FEES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Russell Olevsky and Respondent Jonatas De Paula Oliveira.
- 2) On 9/16/25, Petitioner filed a Request for Order asking the Court to issue a Writ of Execution seeking to collect \$10,814.84 in attorney's fees pursuant to the Court's 1/23/24 order (filed 1/27/24). Petitioner states the award became due thirty days after the Mandatory Settlement Conference on 5/24/24 and is payable at a rate of \$300.41 monthly. Petitioner asserts he only received three payments of \$300.41. Petitioner requests the Court issue a Writ of Execution for a total of \$11,529.66 (total \$10,814.84 attorney's fee award + \$1,616.05 in interest – \$901.23 paid) to prevent having to repeatedly come to Court to collect these fees. Attached as Exhibit 2 is a proposed Writ of Execution.
- 3) At the prior 11/25/25, the Court continued the hearing to 2/17/26 for lack of service.
- 4) On 12/8/25, Petitioner filed a Proof of Service indicating Petitioner's 9/16/25 Request for Order was served on Respondent by mail on 12/8/25.

- 1 5) Respondent did not file a Responsive Declaration.
- 2 6) At the prior 2/17/26 hearing, the Court made a finding that Respondent owes Petitioner \$4,206 in
- 3 unpaid monthly attorney's fees as of 2/17/26 plus \$362.61 in legal interest for a total of \$4,568.35
- 4 owed and therefore granted Petitioner's request for a Writ of Execution pursuant to Family Code
- 5 section 290 in the amount of \$4,568.35.
- 6 7) On 2/24/26, Respondent filed a Request for Order seeking modification of the attorney fee award
- 7 to an affordable amount or a fixed monthly payment plan or, in the alternative, a temporary stay
- 8 on the Writ of Execution. Respondent states that he is undergoing treatment for diagnosed heart
- 9 failure, which requires regular medical care and medications. Respondent asserts that the Writ of
- 10 Execution has created an undue hardship and interfered with his ability to meet his medical
- 11 expenses. Respondent alleges that Petitioner sent his employer communications accusing
- 12 Respondent of criminal conduct, which put his employment at risk. Respondent attached an
- 13 Income and Expense Declaration and receipts for prescriptions and other bills. Respondent also
- 14 attached emails that appear to be from Petitioner to Respondent's employer. The matter was set
- 15 for hearing on 5/12/26.
- 16 8) On 4/17/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
- 17 Order. Petitioner asserts that Respondent did not present documentary evidence of his medical
- 18 diagnosis and requests Respondent be sanctioned \$1,400 and declared a vexatious litigant.
- 19 Petitioner asserts that the allegations regarding emails to Respondent's employers were contained
- 20 in a Request for Domestic Violence Restraining Order that was previously dismissed with
- 21 prejudice.
- 22 9) On 4/17/26, Petitioner filed an Income and Expense Declaration.

23 **B. Findings and Order**

- 24 1) Respondent's request for modification of the attorney fee award or a fixed monthly payment plan
- 25 or, in the alternative, a temporary stay on the Writ of Execution is DENIED. The Court does not
- 26 find that Respondent sufficiently established an inability to pay based on the income and
- 27 expenses listed in his Income and Expense Declaration attached to his Request for Order – which
- 28 shows that Respondent earns \$1,407.83 per month more than his average monthly expenses – and
- 29 the lack of documentary evidence corroborating the factual basis for his request.

1 2) Petitioner's request for \$1,400 in sanctions is DENIED.

2 3) Petitioner's request for the Court to declare Respondent a vexatious litigant is DENIED without
3 prejudice. The Court finds that Respondent's actions have not risen to the level of vexatious
4 litigant under Code of Civil Procedure section 391 subsections (b)(2), (b)(3), and (b)(5) at this
5 time.

6 4) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIEE ALBERTSON ALDEN,

Petitioner

VS.

JOHN WHITING ALDEN,

Respondent

) Case Number: FDI-24-799176

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY AND/OR VISITATION (ORDERS) CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Amiee Albertson Alden (Mother) and Respondent John Whiting Alden (Father). The minor children subject to this proceeding are Erik Godfrey Alden (DOB:07/24/09) and Samuel Rockwell Alden (DOB: 06/01/11).
- 2) On February 2, 2026, Father filed a Request for Order seeking a modification of the existing parenting plan. Father seeks an increase in parenting time and an order for family therapy with costs allocated between the parties' pursuant to Family Code section 4061 (as to minor child Erik). Father also requests an order that Mother retain the passport for Erik and Father retain the passport for Samuel.
- 3) On March 16, 2026, the Court referred the parties to Family Court Services (FCS) Mediation on April 15, 2026 and set the matter for a return hearing on May 12, 2026.
- 4) On March 20, 2026, Mother filed a Responsive Declaration, which has been read and considered by the Court.

1 5) On April 13, 2026, Father filed a Reply Declaration, which has been read and considered by the
2 Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.

8 2) Father's request for modification of the existing parenting plan is DENIED.

9 3) Father's request for an order for family therapy is DENIED.

10 4) Father's request that Mother hold one minor child's passport and Father hold the other minor
11 child's passport is DENIED. Mother's request that she hold both passports for the minor children
12 is GRANTED. If Father needs the passports, he shall provide Mother with 30-day notice and
13 Mother shall give Father the passports no later than 10 days before any travel requiring the
14 passports. Father shall return the passports within 72 hours of return from the trip.

15 5) All prior orders not in conflict with the orders made herein shall remain in full force and effect.

16 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KRISTEN MARIE PORRAS,

Petitioner

VS.

SIXTO CHRISTOPHER PORRAS,

Respondent

) Case Number: FDI-24-800108

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: BIFURCATION OF STATUS OF MARRIAGE; TRIAL SETTING

TENTATIVE RULING

The Court finds good cause to vacate the 5/12/26 hearing on Petitioner's 1/7/26 Request for Order (file dated 1/5/26) seeking bifurcation of trial on permanent custody and visitation and termination of marital status as the Court finds the issues are MOOT for the following reasons: (a) on 3/5/26 the Court issued custody and visitation orders (see Findings and Order After Hearing filed 3/19/26); and (b) on 4/10/26 the parties filed a Stipulation and Order agreeing to terminate marital status, which was entered by the Court.

No appearances are required on 5/12/26.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CELIA LUCRECIA N. VASQUEZ CANDELL,	)	Case Number: FDI-25-802072
Petitioner	)	Hearing Date: May 12, 2026
VS.	)	Hearing Time: 9:00 AM
BYRON A. IXCAL AVILA,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Celia Candell (Mother) and Respondent Byron Avila (Father). The parties have one minor child: Genesis Vasquez (DOB: 08/02/10).
- 2) On December 30, 2025, Father filed a Request for Order seeking initial custody and visitation orders. Father seeks:
 - a. Joint legal and joint physical custody.
 - b. Week on/week off schedule.
 - c. Exchanges facilitated by parent walking the child to the other parent’s apartment upon conclusion of their parenting time.
 - d. A review hearing to ensure visits are moving forward without issue.
- 3) On November 19, 2025, the parties executed a Stipulation and Order, which was signed by the Court and provides for the following terms:
 - a. Continuance of the issues contained in Father’s Request for Order filed April 16, 2025, to January 22, 2026;

- b. Joint legal custody of the minor child;
 - c. Physical custody of the minor child to Mother;
 - d. An agreement to appoint a mutually selected expert to conduct a Brief Focused Assessment; and
 - e. An agreement that Father shall pay guideline child support and temporary spousal support with exchange of updated Income and Expense Declarations and reservation of retroactive support.
- 4) On January 14, 2026, Mother filed a Responsive Declaration to Father's Request for Order in which she asks the Court to:
- a. Grant her sole legal and sole physical custody of the minor child; and
 - b. Grant parenting time to Father on Sundays.
- 5) On January 27, 2026, Father filed a declaration, which has been read and considered by the Court.
- 6) On February 20, 2026, the parties entered into a Stipulation and Order, which provides that the parents will communicate via Our Family Wizard (OFW) and they will each pay their own costs for the OFW Application.
- 7) On April 14, 2026, the parties appeared at hearing; however, a Spanish language interpreter was not available. On the Court's own motion, the matter was continued to May 12, 2026.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Mother and Father shall share joint legal custody of the minor child.
- 3) Mother shall have sole physical custody of the minor child.
- 4) Father's parenting time with the minor child shall be on alternate weekends from Friday at 6:00 p.m. to Sunday at 6:00 p.m. Father's first weekend shall commence on Friday May 15, 2026.
- 5) The parents are permitted to modify the parenting plan by mutual written agreement (e.g., OFW, email, or letter) provided they deem doing so is in the minor child's best-interest.
- 6) All prior orders not in conflict with the orders made herein shall remain in full force and effect.

7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAURA HUERTA,

Petitioner

VS.

LLANCARLO ROMO (BOLANOS),

Respondent

) Case Number: FDV-16-812742

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Maura Huerta (Mother) and Respondent Lllancarlo Romo (Bolanos) (Father). The parties have one minor child: Giovanni Romo (DOB: 02/26/12).
- 2) At the prior September 9, 2025 hearing, the Court appointed minor's counsel and ordered minor's counsel to reach out to Mother, Father, Father's counsel, and the minor's therapist, Ms. Figueroa. Mother was ordered to participate in therapy. The matter was continued to November 20, 2025, to allow Mother to obtain a therapist and to allow minor's counsel to contact all parties. The Court ordered update declarations to be filed and served 10 days prior to the next hearing.
- 3) On November 10, 2025, Father filed a Responsive Declaration with the Court, which was read and considered by the Court.
- 4) On November 13, 2025, Mother filed an Update Declaration, which was read and considered by the Court.

- 1 5) On November 20, 2025, the Court continued the matter to 2/5/2026 to allow for minor's counsel
2 to be formally appointed, interview the parties and therapist, and provide a
3 report/recommendations to the Court.
- 4 6) On January 27, 2026, Father filed a Responsive Declaration, which was read and considered by
5 the Court.
- 6 7) On February 2, 2026, minor's counsel filed a statement for hearing, which was read and
7 considered by the Court.
- 8 8) On February 5, 2026, the parties appeared at hearing and the Court issued the following orders:
- 9 a. Sole legal and sole physical custody to Father.
- 10 b. Mother and Giovanni to have one-hour supervised visit each week at Rally Family
11 Services (Rally).
- 12 c. Mother and Father to each pay one-half of the costs of supervised visits.
- 13 d. Mother and Father to complete their respective intakes with Rally within 14 days of
14 February 5, 2026.
- 15 e. Rally to prepare reports of the supervised visits for the Court.
- 16 f. Mother permitted to Facetime, call, and text with Giovanni as she wishes.
- 17 g. Father to encourage Giovanni to Facetime, call, and text with Mother whenever he
18 (Giovanni) wishes.
- 19 h. Minor's counsel to talk with Giovanni about whether he wants Mother to attend his
20 graduation.
- 21 i. Minor's counsel to provide Giovanni's current telephone number to Mother.
- 22 j. The parties to file update declarations at least 10 days before the hearing on May 12,
23 2026.
- 24 k. Matter continued to May 12, 2026 for review of Rally visits.
- 25 9) On May 1, 2026, Father filed a Responsive Declaration, which has been read and considered by
26 the Court. Father states that intakes with Rally have not been completed.
- 27 10) On May 5, 2026, Mother filed an update declaration, which has been read and considered by the
28 Court.

29 **B. Findings and Order**

1) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LASHANAE EVERETTE,

Petitioner

VS.

JAMES WHITE JR.,

Respondent

) Case Number: FDV-25-818208

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: TEMPORARY EMERGENCY ORDER, CHILD CUSTODY, VISITATION
(PARENTING TIME), CHANGE, RENEWED REQUEST MOTION FOR
RECONSIDERATION/ORDER SHORTENING TIME; REQUEST FOR ORDER CHANGE OF CHILD
CUSTODY, VISITATION (PARENTING TIME), MOTION FOR RECONSIDERATION & ORDER
SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this proceeding are Petitioner LaShanae Evereet (Mother) and Respondent James White Jr. (Father). There are two minor children subject to this proceeding: Jezzelle M. White (DOB: 07/24/19) and Ja'Zara M. White (DOB: 08/14/23).
- 2) On March 5, 2026, Respondent filed a motion for reconsideration of the Restraining Order After Hearing issued April 9, 2025. In addition, Respondent requests the Court modify the existing child custody/visitation orders. Petitioner presently has sole legal and sole physical custody and Respondent has no visitation. The Restraining order lists the children as protected parties.
- 3) On May 8, 2026, Petitioner filed a Responsive Declaration, which has been read and considered by the Court.

1 **B. Findings and Order**

- 2 1) Father's request to set reconsider and set aside the Domestic Violence Restraining Order issued
3 April 9, 2025 is DENIED. The motion was not filed timely and there is no legal basis for
4 reconsideration or set aside.
- 5 2) Father's request for modification of custody is DENIED. Mother shall continue to have sole legal
6 and sole physical custody of the minor children.
- 7 3) Father's request for visitation is GRANTED. Father shall have agency supervised visitation with
8 the minor children one time per week for up to two hours, if permitted by the agency. Father's
9 visitation shall be supervised by Rally Family Services, with Father responsible for 100% of the
10 costs. Mother and Father shall promptly comply with Rally intake requirements.
- 11 4) Father may have video calls with the minor children three times per week from 6:00 p.m. to 6:15
12 p.m. Mother shall provide the Father with any information necessary for him to make the video
13 calls by 5:00 p.m. on Wednesday, May 13, 2026. During the video calls, Father may not speak
14 with the minor children about Mother. If Father discusses Mother, Mother may terminate the
15 calls.
- 16 5) All prior orders not in conflict with the orders made herein remain in full force and effect.
- 17 6) The Court will prepare the Findings and Order After Hearing.
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